

Legislative Problem Statement

Preserving Due Process and Individual Liberty in the Age of Predictive Systems

Executive Summary

Advances in artificial intelligence, predictive analytics, mass data collection, and automated decision systems have created new methods by which governments and institutions may evaluate, classify, monitor, and make decisions about individuals.

Many existing legal protections were developed in an era when information collection was limited by practical constraints. Today, digital systems can aggregate years of behavioral, financial, geographic, biometric, and social information to create detailed profiles and predictions about individuals.

While these technologies may provide significant benefits in public administration, fraud prevention, public safety, and resource allocation, they also create the possibility that individuals may be subjected to adverse actions based not on what they have done, but on what an algorithm predicts they may do.

Current legal frameworks do not clearly address the growing use of predictive systems in consequential governmental decisions.

This proposal seeks to establish a principle of Digital Due Process: that no individual should be deprived of rights, opportunities, benefits, or liberties solely on the basis of automated prediction without meaningful human review and independent supporting evidence.

The Problem

Government agencies increasingly rely on data-driven systems to assist in decision-making.

Examples include:

- Fraud detection systems.
- Risk assessment tools.
- Automated eligibility screening.
- Predictive policing technologies.
- Behavioral monitoring systems.
- AI-assisted investigative tools.

These systems often rely on large volumes of data and statistical models that identify patterns, assign risk scores, or predict future outcomes.

Although such systems may improve efficiency, they create three significant concerns:

1. Lack of Transparency

Individuals frequently do not know:

- Whether an automated system was used.
- What information was considered.
- How conclusions were reached.
- Whether the information was accurate.

Without transparency, meaningful review becomes difficult.

2. Lack of Due Process

An individual may experience adverse consequences without understanding the basis for a decision or having a meaningful opportunity to challenge it.

Traditional constitutional safeguards were designed to prevent arbitrary governmental action.

Automated systems should not diminish those safeguards.

3. Predictive Determinations

The most significant concern arises when predictive systems are used to infer future conduct, risk, intent, or behavior.

In a free society, government action has historically been based upon evidence, conduct, and established legal standards.

Increasing reliance on predictive systems raises important questions regarding fairness, accountability, and constitutional protections.

Why Existing Law May Be Insufficient

Current laws governing privacy, records management, and administrative procedures were largely developed before the emergence of modern artificial intelligence and large-scale predictive analytics.

While existing protections remain important, they often do not specifically address:

- Algorithmic decision-making.
- Predictive profiling.
- Automated risk scoring.
- Large-scale behavioral inference.
- AI-assisted governmental determinations.

Clarification may be necessary to ensure that constitutional protections remain effective as technologies evolve.

Proposed Legislative Principle

The State of Minnesota should affirm that:

"No governmental agency shall impose a material adverse action upon an individual solely on the basis of an automated prediction, risk score, or algorithmic determination without meaningful human review and independent supporting evidence."

This principle does not prohibit the use of artificial intelligence or predictive technologies.

Rather, it ensures that such technologies remain advisory tools rather than substitutes for due process and human judgment.

Public Interest

The purpose of this proposal is not to restrict innovation.

Its purpose is to preserve long-standing constitutional principles, including:

- Due process.
- Individual accountability.
- Government transparency.
- Equal treatment under law.
- Protection against arbitrary governmental action.

Technological advancement should strengthen democratic institutions rather than diminish the rights of the individuals those institutions serve.

Requested Action

The Minnesota Legislature should examine whether existing statutes adequately protect citizens from adverse governmental actions based solely upon automated predictions and should consider establishing Digital Due Process protections to address emerging technologies.

Such protections would help ensure that constitutional rights remain meaningful in an increasingly data-driven society.